Jasveer Singh @ Shubham vs State Of U.P. & Anr. on 17 November, 2020

Author: Narendra Kumar Johari

Bench: Narendra Kumar Johari

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HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

?Court No. - 32

Case :- BAIL No. - 4216 of 2020

Applicant :- Jasveer Singh @ Shubham

Opposite Party :- State Of U.P. & Anr.

Counsel for Applicant :- Pravin Kumar Verma,Akhtar Jahan,Bhola Singh Patel,Roshan Lal Ve

Counsel for Opposite Party :- G.A.,Beant Singh

Hon'ble Narendra Kumar Johari,J.
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Heard Shri Sajeet Singh, learned counsel for the applicant, learned A.G.A. for the State as well as Shri Beant Singh, learned counsel for the complainant and perused the record.

The present bail application has been filed by the applicant in Crime No. 51 of 2020, under Section 376 IPC and Section 3/4 POCSO Act, Police Station Bazar Khala, District Lucknow.

Submission of learned counsel for the applicant is that applicant is innocent and he has been falsely implicated in this case only due to the ancestral property dispute. Applicant is the close relative and cousin brother of the victim. Victim had voluntarily gone at the residence of the applicant where she was allegedly tortured, that is why she left the home. As per medical examination report, there is no sign of external or internal injury on the body of the victim. No proof of penetration has been found. Applicant is in jail since 12.05.2020. If he is released on bail, he will not misuse the liberty of bail

and will co-operate in the trial.

Learned A.G.A. as well as learned counsel for the complainant have opposed the prayer for grant of bail but they did not dispute the factual contentions argued by learned counsel for the applicant.

Considering the submissions of learned counsel for the parties, facts and circumstances of the case, nature of supporting evidence, reasonable apprehension of tampering the witnesses and, prima facie satisfaction of the court in support of the charges, without expressing any opinion on the merit of the case, the applicant is entitled to be released on bail.

Let applicant (Jasveer Singh @ Subham) involved in Crime No.51 of 2020, under Section 376 IPC and Section 3/4 POCSO Act, Police Station Bazar Khala, District Lucknow be released on bail, subject to the following conditions :-

> (i). The applicant will furnish a personal bond with two sureties of the like amount to the satisfaction of the court concerned.
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> (ii). The applicant will appear and strictly comply following terms of bond executed under section 437 sub section 3 of Chapter 33 of Cr.P.C.-
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> (a) applicant shall attend in accordance with the conditions of the bond executed under this Chapter.
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> (b) applicant will not indulge in any criminal activities, and
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> (c) applicant shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer or tamper with the evidence.
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> (iii). The applicant shall cooperate with investigation /trial.
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> (iv). The applicant shall file an undertaking to the effect that he shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.
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> (v). The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, the trial court may proceed against him under Section 229-A of the Indian Penal Code.
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> (vi). In case, the applicant misuses the liberty of bail during trial in order to secure his presence proclamation under section 82 Cr.P.C. is issued and the applicant fails to appear before the court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law, under Section 174-A of

the Indian Penal Code.

(vii). The applicant shall remain present, before the trial court on the dates fixed for (i) opening of the case, (ii) framing of charge and (iii) recording of statement under Section 313 Cr.P.C. If in the opinion of the trial court absence of the applicant is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of bail and proceed against him in accordance with law.

Order Date :- 17.11.2020 ML/-